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CASE #	CASE NAME	HEARING NAME
30-2024-01387116-CU-WT-WJC	ONGKEKO vs MAYS-FONTAINE	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

Tentative Ruling:

Non-opposition filed. Motion granted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON vs GIBSON	MOTION TO COMPEL

Tentative Ruling:

Summary of Ruling: Plaintiffs' Motion to Compel Compliance is **MOOT** if full production is completed before the hearing. Otherwise, the Court grants the Motion to Compel Compliance within 10 days. The Court grants Plaintiffs' request for monetary sanctions in the amount of \$1,410.00.

Factual/Procedural Context

Plaintiff Natalie Mary Moton ("Plaintiff") operates a working ranch in Temecula known as Namaste Farms where she has specialized in the production of wool, fiber, and wool products. (Compl. ¶ 6.) Plaintiff and Defendant Joni Gibson ("Defendant") are neighbors involved in a related title dispute—*Moton v. The Ark, LLC*, Case No. CVSW2204328, filed in 2022—in which the parties stipulated that Defendant is not a good faith purchaser of property as the purchase took place while Defendant knew that Plaintiff has a claim to the property. (*Id.* at ¶¶ 7–9.)

Plaintiff alleges that beginning around September 3, 2024, Defendant began posting false claims on social media that animals at Namaste Farms, including dogs, were abused daily. (*Id.* at ¶ 11, Ex. A.) The posts included photos of an emaciated sheep that did not belong to Plaintiff and lacked any USDA ear tag, and Defendant posted a link to Namaste Farms' homepage to encourage others to repeat the allegations. (*Id.* at ¶ 12.)

On September 6, 2024, Riverside County Animal Control and the Sheriff's Department investigated and determined the allegations were "unfounded," closing the investigation, as confirmed in the video transcript where the Sergeant of the Animal Control agreed the case was unfounded. (*Id.* at ¶ 15, Ex. B.) Plaintiff alleges that despite this, Defendant doubled down on September 7, 2024, falsely claiming Plaintiff had "swapped out" animals before investigators arrived, and removed the exonerating animal control video from her feed on September 11, 2024, while reposting the original false post and refusing to remove it or issue a retraction. (*Id.* at ¶ 16, Ex. C.)

On September 18, 2024, Plaintiff filed a Complaint against Defendant and her husband, Oliver Gibson (collectively, "Defendants"), asserting two causes of action: (1) defamation (libel per se), and (2) defamation (trade libel). Plaintiff seeks a preliminary and permanent injunction against Defendant from engaging in the alleged defamation, along with an order to take down the alleged defamatory posts. Plaintiff also seeks compensatory and general damages in an amount not less than \$1,000,000.00.

On February 14, 2025, Defendants filed their Answer to the Complaint, denying each and every allegation and asserting six affirmative defenses: (1) truth, (2) opinion, (3) Plaintiff is a public figure, (4) harm was caused by Plaintiff's actions, not Defendants', (5) Defendants' actions were based on facts as known to them, and (6) mitigation.

On January 13, 2026, Plaintiff propounded several sets of discovery on Defendant, including Requests for Production of Documents ("RFPs"), Set Two. As relevant to the current motion, RFP Nos. 18–25 sought digital copies of all photos previously produced in discovery by Defendant with all preserved metadata, all documents that she identified in her responses to Form Interrogatories ("FROGs") concurrently served and the documents identified in her responses to Special Interrogatories ("SROG").

Defendant served unverified responses to RFPs on March 3, 2026, with verifications received on March 16, 2026. In her responses, Defendant agreed, subject to privilege objections, to produce documents responsive to each request, including native digital photographs with preserved metadata and executed witness declarations, Riverside County Code Enforcement records, and native digital photographs of the animals.

On March 5, 2026, Plaintiff sent a meet-and-confer letter addressing the deficiencies in Defendant's responses. On March 20, 2026, Defense counsel emailed apologizing for the delay, but no documents followed.

On March 27, 2026, Plaintiff sent another meet-and-confer letter addressing the deficiencies. Plaintiff sent follow-up emails on April 6 and 13, 2026, with no response and no production received. Defense counsel had also confirmed by phone that records would be produced by the end of the week of April 10, 2026, but no production followed.

On April 22, 2026, Plaintiff filed the instant motion to compel compliance regarding RFPs, Set Two. No production of the RFP documents has been made.

Plaintiff moves under CCP § 2031.320 for an order compelling Defendant to produce documents she agreed to produce in her verified responses to RFPs, Set Two. Plaintiff explains that on March 3, 2026, Defendant served unverified responses agreeing to produce responsive documents, with verifications received March 16, 2026, but Defendant never produced the documents despite repeated promises. Plaintiff cites CCP § 2031.320 and *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903 for the rule that all that must be shown is the responding party's failure to comply as agreed. Plaintiff seeks monetary sanctions against Defendant in the amount of

\$1,410.00, noting this is the second motion Plaintiff has had to bring to obtain records, with prior discovery orders and sanctions already entered against Defendants.

Defendant's initial June 1, 2026 opposition did not address the merits but requested a continuance based on lack of service, asserting that her counsel's firm had no record of ever having received the motion and that neither her counsel nor anyone else in the firm has ever received the motion. This Court continued the hearing to July 15, 2026, and set a briefing schedule for substantive opposition and reply.

Defendant thereafter filed a substantive opposition through her new counsel, who declared that he had recently taken over the matter and believed he could resolve the RFPs, Set Two discovery issues before the hearing. (Daher Decl. ¶¶ 1–2.) In Defendant's separate statement, Defendant represented that new counsel was meeting and conferring with Plaintiff's counsel, expected the issues to be resolved before the hearing, and anticipated producing all relevant, non-privileged documents. (Def.'s Separate Statement pp. 2–9.)

In reply, Plaintiff emphasizes that Defendant does not meaningfully oppose the motion and instead say only that new counsel will meet and confer and produce records before the hearing. Plaintiff states that, as of the reply, she still had not received the subject records despite prior promises of production. Plaintiff also contends that objections not asserted in the original responses were waived, and that the delay has needlessly prolonged discovery, including meaningful depositions. Plaintiff thus asks the Court to order production of RFP Nos. 18–25 within 10 days and award \$1,410.00 in sanctions.

Analysis

CCP § 2031.320(a) authorizes the Court to compel compliance where a party that served a statement of compliance “thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance.” (CCP § 2031.320(a).) Unlike a motion to compel further responses, a section 2031.320 compliance motion does not require a separate statement or meet-and-confer declaration. (*Standon Co. v. Sup. Ct.* (1990) 225 Cal.App.3d 898, 903.) The moving party’s burden is narrow: once the responding party has agreed to produce, “there is no longer any dispute over the right to inspect the documents or objects,” and the only question is whether the responding party has done what it promised. (*Id.*) Monetary sanctions are mandatory against the unsuccessful party absent substantial justification or other circumstances making sanctions unjust. (CCP § 2031.320(b).)

Plaintiff moves to compel production of documents Defendant agreed to produce in her verified responses to RFPs, arguing that no documents have been produced despite multiple promises. Defendant does not oppose on the merits. Instead, new counsel represents that he has recently taken over the matter and anticipates resolving all issues and producing all relevant, non-privileged documents prior to the hearing. (Daher Decl. ¶¶ 1–2.)

Defendant has thus effectively agreed to resolve the discovery issue by supplemental production before the hearing. If Defendant provides complete production of all documents she agreed to produce in her verified responses to RFP Nos. 18–25 before the hearing, there will be no remaining failure to comply requiring a court order, and the motion is moot as to the request for a compliance order. If production has not been completed by the hearing, the Court will grant the motion under section 2031.320(a) and order production within 10 days.

Monetary sanctions, however, remain appropriate regardless of whether production is completed before the hearing. Under section 2031.320(b), the Court “shall impose” a monetary sanction against a party who unsuccessfully opposes a motion to compel compliance, unless it finds substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.320(b).) Defendant’s opposition promised only future performance and did not contest the underlying failure to produce, nor offer substantial justification for the months long delay (from March 16, 2026, when verifications were served, through at least July 2, 2026) that necessitated this motion. Plaintiff’s requested sanctions of \$1,410.00, calculated at a \$300 hourly rate for approximately 4.5 hours of attorney time plus a \$60 filing fee, are reasonable. (Zemming Decl. ¶ 6.)

Ruling: At the hearing, the Court will inquire into the status of Defendant’s compliance with her verified agreement to produce documents responsive to RFP Set Two Nos. 18–25.

- If Defendant has completed production of all documents she agreed to produce before the hearing, the motion to compel compliance is **MOOT**.
- If Defendant has not completed production by the hearing, the Court grants the motion and orders Defendant to produce all documents she agreed to produce in response to RFP Set Two Nos. 18–25, within 10 days of the date of the order.
- The Court grants Plaintiff’s request for monetary sanctions in the amount of \$1,410.00.